DATED _____ 2026

MEDBURY HEALTHCARE GROUP
and
CONSULT FOR AFRICA

MEMORANDUM OF UNDERSTANDING

relating to the establishment and management of the CFA managed special division

Private and confidential.

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MEMORANDUM OF UNDERSTANDING

DATED _____ 2026

BETWEEN

(1) **MEDBURY HEALTHCARE GROUP**, a company incorporated in Nigeria and having its registered office in Lagos (**Medbury**); and

(2) **CONSULT FOR AFRICA**, a healthcare advisory and operating firm having its principal office in Lagos (**CFA**),

each a **Party** and together the **Parties**.

RECITALS

(A) Medbury has grouped five of its businesses into a single special division so that they may share resources, and has asked CFA to establish and then manage it.

(B) The five businesses are listed at Schedule 1. Plastics and dermatology has its own shareholders and its own memorandum, and nothing here varies that.

(C) The Parties settled the commercial terms in correspondence on 20 and 21 September 2026, revised them in October 2026, and wish to record them.

(D) This Memorandum is binding as stated at clause 25.

IT IS AGREED as follows.

1. **DEFINITIONS AND INTERPRETATION**

1.1 In this Memorandum: **Division** means the CFA managed special division comprising the five businesses at Schedule 1; **Business** means any one of them; **Commencement Date** means the date on which the first setup tranche under clause 5.4 is received by CFA, or such other date as the Parties agree in writing; **Setup Period** means the five months from the Commencement Date; **Management Period** means the period beginning at month six; **Platform** means the software platform CFA builds for the Division under clause 21.2; **Collected Net Revenue** has the meaning at clause 9.2; **EBITDA** means earnings before interest, tax, depreciation and amortisation for the Division, prepared on the accounting policies the Board approves, and excluding any group management charge, cost allocation or change to intra-group pricing not provided for in the approved budget, unless CFA has agreed to it in writing; and **Board** means the board of Medbury or such committee as it appoints.

1.2 A reference to a clause or Schedule is to a clause of or Schedule to this Memorandum. The Schedules form part of it. Headings do not affect its construction. Amounts are in Nigerian Naira and, where expressed in millions, are written as NGN followed by the figure and the letter m.

2. **PURPOSE**

2.1 CFA will establish the Division over the Setup Period and manage it thereafter, so that five separate businesses operate as one division with one rate card, one clinical record, one back office and one operating rhythm.

2.2 The Parties acknowledge that the shared resources are what make the Division a division rather than five businesses at one address, and that they are the substance of what CFA provides.

2.3 A purpose of this arrangement is that the Board is not required to manage the Division day to day. The Board sets the goals and the budget and receives the reporting at clause 11, and CFA carries the running of it.

3. THE DIVISION

3.1 The Division comprises the five Businesses at Schedule 1, in Lagos. Any other site, including Abuja, is outside this Memorandum and, if the Parties wish to add it, is scoped and priced separately.

3.2 The Division is grouped for operating efficiency. Where a Business grows to a size at which it is better run on its own, the Parties will consider separating it, and clause 22 applies.

4. THE SETUP

4.1 The Setup Period is five months from the Commencement Date.

4.2 CFA will deliver the operating system once for the whole Division. It comprises the rate card and the model beneath it, the clinical protocol set, the build and configuration of the Platform, the standard operating procedures, the procurement framework and the partner terms.

4.3 The registrations, licensing, recruitment and commissioning of the Lagos site are inside the setup fee at clause 5.1.

4.4 Project management of any building works is not inside that fee. Where Medbury's own contractors manage the works, CFA charges nothing for it. Where Medbury asks CFA to manage them, that is quoted separately against a defined programme and scope.

4.5 A service or business added after the date of this Memorandum, including a service not listed at Schedule 1, is scoped and priced separately and is not inside the setup fee.

4.6 The setup deliverables are at Schedule 3.

5. THE SETUP FEE

5.1 Medbury will pay CFA NGN 18m for the setup, exclusive of value added tax and exclusive of government and regulatory fees.

5.2 Government and regulatory fees, meaning incorporation and tax registrations, facility registration, clinical and practitioner registrations, pharmacy and dispensing permissions, data protection filings and trade mark filings, are payable by Medbury. Medbury may settle them directly or reimburse CFA at cost against receipts, and CFA applies no mark-up to them.

5.3 CFA will provide a schedule of the expected fees before the Commencement Date and will notify Medbury before incurring any fee not on that schedule, so that none of them arrives as a surprise.

5.4 It is payable in four tranches, the first on signature and the remainder against the measures set out below. The deliverables those measures test are at Schedule 3.

When	NGN m	What has to be true
On signature	9.0	Mobilisation. The team is deployed in full and every workstream opens.
Month 1	4.0	The rate card delivered with the primary price research, the bottom-up cost to serve and the sensitivity model behind it. Internal supply specified and routed.
Month 3	3.0	The first business lawfully trading and first revenue banked, every service partner under a signed service level agreement, and the pre-opening programme revenue target met.
Month 6	2.0	At the switch to management. The handover complete, the Division running on the normal management rhythm, and the measures above still met.

5.5 Where a tranche measure is not met, that tranche is not payable until it is. No tranche measure may be waived except in writing by both Parties.

5.6 Where a measure is not met because of an act or omission of Medbury, including a delay in a decision, an approval, a payment, the premises or a registration held in its name, or because of a regulator's delay outside CFA's control, the tranche is payable on the date it would otherwise have fallen due.

5.7 Travel outside Lagos is not inside the setup fee and is recharged at cost with Medbury's prior approval.

6. MANAGEMENT FROM MONTH SIX

6.1 From month six CFA manages the Division. The two months preceding are a transition between the Setup Period and the Management Period and not an exit.

6.2 CFA's management comprises the two chief operating officers at clause 7 and the support functions at Schedule 2, and CFA is accountable to the Board for the performance of the Division against the measures at Schedule 4.

6.3 CFA will hold what no single Business owns: the rate card across the five, the shared clinical record, the referral path and the cross-sell between them.

7. THE CHIEF OPERATING OFFICERS

7.1 The Division has two chief operating officers, one for the aesthetics Businesses and one for Medlyfe wellness and regenerative, each accountable for the profit and loss of their part of the Division.

7.2 CFA recruits both, against a brief and a specification CFA prepares. Medbury approves each appointment, and the search, assessment and onboarding are at CFA's cost and are not recharged.

7.3 Medbury employs both and pays their salaries, employer contributions and benefits directly. Neither sits on CFA's payroll.

7.4 Both are seconded to CFA for the term of this arrangement, for the purpose of operationalising the Division, and report to CFA for delivery. CFA directs their work, sets their objectives and appraises them, and the Board holds CFA rather than either individual accountable for the measures at Schedule 4.

7.5 Where CFA considers that a chief operating officer is not performing, CFA will say so in writing and the Parties will agree a remedy or a replacement. Medbury may, where it reasonably determines that a chief operating officer is unsuitable, underperforming or otherwise not in the best interests of the Division, require CFA to recommend and conduct a replacement search at no additional cost to Medbury. CFA will conduct any replacement search at its own cost. Where a chief operating officer post is vacant for a reason not attributable to CFA, including a replacement Medbury requires, the measures at Schedule 4 for which that officer is responsible are suspended until the replacement is in post.

7.6 The Parties record that this arrangement gives CFA direction without employment, and gives Medbury the employment relationship. It works only while the reporting line at clause 7.4 is observed in practice as well as in writing.

8. THE SUPPORT FEE

8.1 Medbury will pay CFA NGN 2m a month, exclusive of value added tax, monthly in advance from month six, on the payment date at clause 14.1.

8.2 The fee is for two things and not one. First, the support functions at Schedule 2, which CFA carries at its own premises and on its own payroll. Second, the direction of the Division toward the goals the Board sets, exercised through the seconded chief operating officers under clause 7.4 and through CFA's own oversight.

8.3 Accordingly CFA is engaged to manage the Division and not merely to service it. The Parties record that the second limb of clause 8.2 is the substance of the engagement, and that the support functions exist to make it deliverable.

8.4 The fee covers the functions, their output and the service levels behind them. It does not reserve any named individual to the Division, because the functions are shared across CFA's clients.

8.5 The fee is fixed for the first twelve months.

8.6 On each anniversary the fee moves by the National Bureau of Statistics headline consumer price index, year on year for the month preceding the anniversary, subject to a floor of nil and a cap of 15 per cent. The Parties agree this adjustment now, in writing, and it applies without further approval.

8.7 Any other adjustment to the fee takes effect only by written agreement of both Parties, and CFA may not otherwise increase the fee unilaterally.

8.8 Either Party may call a review of the fee outside the anniversary where the scope of the support functions, or the Division's demand on them, grows materially beyond what is assumed at Schedule 2. Such a review is to be concluded within 30 days.

9. PERFORMANCE REMUNERATION

9.1 In addition to the support fee, and subject to the goals at clause 9.4 being met, CFA will receive 3 per cent of Collected Net Revenue. This is the whole of CFA's performance remuneration and no share of EBITDA or of any other measure is payable.

9.2 **Collected Net Revenue** means cash actually collected by the Division for its services and products, excluding value added tax, refunds and credit notes, and excluding any third party item the Division passes through at cost without taking a margin on it. It is measured on cash received and not on invoices raised.

9.3 For the avoidance of doubt, drugs, implants, devices and consumables that the Division sells at a margin form part of Collected Net Revenue. Only items genuinely passed through at cost are excluded, and the Parties will agree the list of those items before the Management Period begins and review it at each anniversary.

9.4 It is payable only where the Division meets both the revenue goal and the EBITDA goal in the Board-approved budget for the period. Although CFA is paid on revenue, it is not paid on revenue bought at the expense of profit. No performance remuneration is payable for any period in which the Division records a negative EBITDA.

9.5 It is paid quarterly in arrears, measured on a rolling basis, and trued up at the year end once the audited or Board-approved figures are available. Where the annual goals are not met, the true-up recovers what was paid. Any overpayment is a debt due from CFA within 30 days of the true-up and, if not paid by then, may at Medbury's election be set off against any amount otherwise payable to CFA.

10. THE BUDGET

10.1 The Board-approved budget is the reference for the goals at clause 9.4 and for the measures at Schedule 4, so the way it is set matters to both Parties.

10.2 CFA proposes the annual budget not less than eight weeks before the financial year end, Business by Business, showing the volume and price assumptions rather than a single revenue line.

10.3 The Board approves or amends it. Whatever the Board approves is the budget. Where the Board lowers CFA's proposal, the goals and the measures fall with it. Where the Board raises it, the goals at clause 9.4 and the measures at Schedule 4 remain those in CFA's proposal unless CFA agrees otherwise in writing.

10.4 Neither Party may re-base the approved budget during the year except by written agreement, so that a target is neither lowered to release remuneration nor raised to withhold it.

10.5 A material event outside the Division's control, including a site closure or a regulatory suspension, triggers a joint review of the budget rather than an automatic failure against it.

11. MEASURES AND REPORTING

11.1 The measures for the Management Period are at Schedule 4. They are set where a well run division meets them rather than where it must be exceptional.

11.2 They are measured quarterly and apply from the third full quarter of the Management Period, so that the Division is not judged on its opening ramp.

11.3 CFA will deliver a board pack within ten working days of each month end, produced from the Platform rather than compiled by hand.

12. WHAT EACH PARTY PROVIDES

12.1 CFA provides the functions at Schedule 2 and carries every post behind them at its own premises and on its own payroll.

12.2 Medbury provides and pays for everything that touches a patient or is consumed by one, and for the posts recorded as Medbury's at Schedule 5.

12.3 The general rule is that CFA provides the function and Medbury bears the cost of doing it. Accordingly CFA runs marketing and sales and Medbury bears the marketing and sales spend; CFA runs recruitment and Medbury bears every salary in the Division; CFA runs procurement and Medbury bears the cost of the goods; and CFA administers the Platform while Medbury bears its hosting, licences, hardware, connectivity and payment gateway charges.

12.4 CFA will not incur any expenditure, or commit Medbury to any third party liability, above the approved budget without Medbury's prior written consent.

12.5 Schedule 5 records who employs and pays each post. Where a post is not listed, the tests are whether its number changes as revenue grows and whether it must be at a site to do the job. A post that grows with volume or must be on site is Medbury's.

13. STANDARD OF PERFORMANCE

13.1 CFA will perform its obligations with the reasonable skill, care and diligence to be expected of a professional firm experienced in managing healthcare businesses in Nigeria, and will assign personnel with appropriate qualifications and experience.

13.2 CFA does not guarantee any particular financial outcome. The measures at Schedule 4 are the agreed standard against which performance is judged, and clause 22 is the agreed consequence of failing them.

13.3 Medbury will provide CFA with timely access to the premises, records, systems, staff and decisions it reasonably requires, and CFA is not responsible for a failure, including a failure against a measure at Schedule 4, caused by Medbury not doing so, by Medbury withholding budget or consent, or by Medbury acting outside the arrangement at clause 7.4.

14. INVOICING, PAYMENT AND TAXES

14.1 The support fee is payable monthly in advance on or before the fifth business day of the month to which it relates, on a fixed date each month and not by reference to a period running from an invoice. CFA will issue its invoice by the twenty fifth day of the preceding month.

14.2 Each setup tranche is payable within ten business days of the relevant measure being met and CFA's invoice for it. The first tranche is payable on signature.

14.3 All fees are exclusive of value added tax, which Medbury pays in addition at the prevailing rate against a valid invoice.

14.4 Medbury may deduct withholding tax where it is required by law to do so, and will provide CFA with the credit note or receipt evidencing the deduction within 30 days of remittance so that CFA can claim the credit.

14.5 Payment is made in full and in cleared funds, without set-off, counterclaim, withholding or deduction of any kind, other than a withholding tax Medbury is required by law to deduct under clause 14.4, save that either Party may set off any amount due and payable by the other against any amount it owes, provided that the amount is undisputed or has been finally determined.

14.6 The support fee is payable for CFA making the functions and the management available for the month. It is not conditional on the approval of any particular deliverable, report or outcome, and no deliverable is a precondition to it falling due.

14.7 Where Medbury disputes part of an amount in good faith, it pays the undisputed part on the due date and notifies CFA of the disputed part, with reasons, within five business days of the due date. A

dispute does not entitle Medbury to withhold any other amount. The Parties will resolve it between the Group Chief Executive and the Founding Partner within fifteen business days.

14.8 Each Party will name a finance contact for this arrangement. Where a payment has not reached CFA by its due date, CFA notifies that contact, and if it is not resolved within five business days the matter is escalated to the Group Chief Executive.

14.9 Before the Management Period begins Medbury will pay CFA a sum equal to one month's support fee, which CFA holds as security and applies against the final month of the arrangement. It is not additional consideration. On termination it is refundable within 14 days, after deduction of any sums due to CFA under this Memorandum.

14.10 An amount not paid by its due date carries interest from that date until payment at three per cent a year above the Central Bank of Nigeria monetary policy rate, accruing daily. CFA may waive interest in any instance without affecting the right.

14.11 Where payment is late on two or more occasions in any twelve month period, that is a material breach for the purposes of clause 22, and CFA may in addition require the support fee to be paid quarterly in advance for the remainder of the term.

14.12 Where an amount is not paid within 14 days of its due date and is not disputed under clause 14.7, CFA may suspend the affected services on 14 days' written notice. Suspension does not relieve Medbury of accrued fees, and CFA will not suspend anything that would put a patient at risk.

15. RECORDS AND AUDIT

15.1 CFA will keep proper records of the costs it recharges to Medbury at cost under clauses 5.2 and 5.7, and will retain them for three years. CFA's own costs, margins and establishment are not open to audit.

15.2 Medbury may audit those records once in any twelve month period, on 14 days' notice, during normal business hours, itself or through an adviser bound to confidentiality. Medbury bears the cost of the audit unless it shows an overcharge of more than five per cent, in which case CFA bears it and refunds the difference.

15.3 CFA may examine the Division's records to the extent reasonably necessary to verify Collected Net Revenue and EBITDA for the purposes of clause 9.1.

16. CONFLICTS AND NON-EXCLUSIVITY

16.1 CFA provides the functions at Schedule 2 from a shared bench that serves other clients, and this Memorandum is not exclusive. Medbury acknowledges that this is the basis on which the support fee is set.

16.2 CFA will not, during the term, take on the operating management of a competing aesthetics, longevity or regenerative business in Lagos without Medbury's prior written consent, which will not be unreasonably withheld. This does not restrict advisory work, work for any client CFA serves at the date of this Memorandum, or anything after the term ends.

16.3 CFA will disclose any actual or potential conflict of interest promptly, and will not place a CFA-related supplier with the Division without disclosing the relationship and obtaining the Board's approval.

17. NON-SOLICITATION

17.1 During the term and for twelve months after it, neither Party will solicit or employ any employee, secondee or contractor of the other who has been materially engaged in the Division, without the other's prior written consent.

17.2 This does not apply to a response to a public advertisement not directed at the individual, nor to the two chief operating officers, whose position is governed by clause 7.

18. INSURANCE AND LIABILITY

18.1 CFA will maintain professional indemnity insurance appropriate to the value of this engagement and will provide evidence of it on request.

18.2 Because the registrations are held in Medbury's name under clause 19.2, Medbury remains responsible for clinical care, for clinical negligence and for the acts and omissions of clinicians. CFA is not a healthcare provider, does not practise medicine and does not hold itself out as doing so.

18.3 Subject to clause 18.4, CFA's aggregate liability arising out of this Memorandum in any twelve month period is limited to the total fees received by CFA under clauses 8.1 and 9.1 in that period.

18.4 Nothing in this Memorandum limits either Party's liability for fraud, wilful misconduct, death or personal injury caused by negligence, breach of confidentiality, or any liability that cannot lawfully be limited. The clinical responsibility at clause 18.2 is not limited by this clause.

18.5 Neither Party is liable to the other for indirect or consequential loss, or for loss of profit, revenue or goodwill, however arising.

19. COMPLIANCE AND LICENCES

19.1 Each Party warrants that it has the authority to enter into this Memorandum and will comply with all applicable laws, including the Nigeria Data Protection Act 2023 and the rules of the Medical and Dental Council of Nigeria and the relevant State health facility monitoring and accreditation agency.

19.2 Medbury is responsible for obtaining and maintaining every facility, clinical, professional and other licence, registration and accreditation the Businesses require. CFA will prepare, submit and manage the applications as part of the setup, but each is held in Medbury's name.

19.3 Neither Party, nor anyone acting on its behalf, will offer or accept any bribe, facilitation payment or improper advantage in connection with the Division, and each will comply with applicable anti-corruption law.

20. FACILITIES AND BIOMEDICAL

20.1 Facilities management and biomedical engineering are not inside the support fee at clause 8.1.

20.2 CFA provides those services and the Parties intend to discuss them separately. They belong on their own retainer because they carry a different cost base and a different risk profile.

20.3 Before they can be priced the Parties must settle whether the scope is the whole of Lyfe Place or only the spaces the Division occupies. Until a retainer is agreed, facilities and biomedical remain with Medbury.

21. INTELLECTUAL PROPERTY AND DATA

21.1 Everything produced for the Division under this Memorandum belongs to Medbury: the rate card and the model beneath it, the clinical protocols, the standard operating procedures and the partner agreements. The Platform is dealt with at clause 21.3 and the data at clause 21.7.

21.2 CFA will build the Platform for the Division rather than licence an existing product to it. The build is inside the setup fee at clause 5.1 and is not charged in addition to it. No licence fee, build fee or implementation fee is payable for the Platform, whether during the Setup Period or afterwards.

21.3 On payment of the setup fee in full, the Platform as delivered, together with its configuration and its integrations, belongs to Medbury. CFA will deliver the source code and the technical documentation, and will keep an up to date copy in escrow or in a repository under Medbury's control.

21.4 CFA retains its background intellectual property, meaning the frameworks, libraries, tools, methods and pre-existing code CFA brings to the build and uses across its work. CFA grants Medbury a perpetual, non-exclusive, royalty free licence to use that background intellectual property to the extent it is embedded in the Platform, for the operation of the Division and any successor to it.

21.5 Clause 21.4 does not prevent CFA from using its background intellectual property for other clients, and does not give CFA any right to use the Division's data for any purpose other than operating the Division.

21.6 Medbury bears the third party costs of running the Platform, being hosting, third party software licences, hardware, connectivity and payment gateway charges, as recorded at clause 12.3. CFA administers it under clause 8.1.

21.7 All data of the Division, including patient data, belongs to Medbury at all times and no part of it vests in CFA. On expiry or termination, and at any time on reasonable request, CFA will deliver that data and the Platform configuration in a structured and commonly used format that Medbury can carry elsewhere, and will provide reasonable assistance with the migration.

21.8 Patient data is processed in accordance with the Nigeria Data Protection Act 2023. Medbury is the data controller and CFA processes on its instructions.

22. TERM, REVIEW AND TERMINATION

22.1 This arrangement runs for 24 months from the Commencement Date, with a formal review at 12 months at which the Parties will consider the support fee, the measures, the establishment and whether the Division should be structured differently.

22.2 Medbury may terminate for sustained failure against the measures at Schedule 4. Sustained failure means failure against the same measure in two consecutive quarters, which entitles Medbury to give written notice and CFA to one quarter in which to remedy it. Where it is not remedied, Medbury may terminate on 30 days' notice.

22.3 Either Party may terminate for material breach not remedied within 30 days of written notice, or on the insolvency of the other.

22.4 Either Party may terminate this Memorandum for convenience on 90 days' written notice, which may not expire before the review at clause 22.1. Where Medbury terminates under this clause, every setup tranche not yet paid falls due on the date of the notice, and the support fee remains payable for the notice period.

22.5 On termination CFA will hand over every operating document, the Platform configuration and the data, and will provide reasonable transition assistance for up to 60 days, charged at CFA's published rates beyond any notice period for which the support fee was paid. The Platform passes to Medbury only once the setup fee is paid in full under clause 21.3. Fees accrued to the date of termination remain payable, and the performance remuneration is apportioned to that date.

22.6 The secondments at clause 7.4 end on termination and the chief operating officers report to Medbury from that date.

22.7 The Parties do not intend that CFA manages the Division indefinitely. At each review under clause 22.1 they will consider whether the Division is ready to be managed within Medbury or by a successor, and CFA will support that transition rather than resist it.

22.8 Where Medbury decides to take management in house or to appoint a successor, it will give CFA not less than 90 days' notice. CFA will deliver a structured handover across that period covering the operating documents, the Platform configuration and its administration, the partner relationships, the budget and the reporting, and the induction of whoever takes over. Neither Party pays a penalty for such a transition.

22.9 Because everything the Division runs on already belongs to Medbury under clause 21, a handover is a process and not a recovery. The Parties record that this is deliberate, and that CFA has built the Division so that Medbury is able to leave.

23. OTHER MEDBURY BUSINESSES

23.1 Where the Division performs, the Parties may agree to bring other Medbury businesses under CFA management.

23.2 Before appointing a third party to manage any other Medbury business or division on terms comparable to these, Medbury will give CFA a first opportunity to propose terms, and will consider that proposal in good faith. This does not oblige Medbury to accept it.

23.3 Any such extension is a separate arrangement, scoped, costed and documented on its own terms, and nothing in it varies this Memorandum.

24. CONFIDENTIALITY

24.1 Each Party will keep confidential the other's commercial and clinical information and use it only for the purposes of this arrangement. The obligation survives termination for three years and does not apply to information that is public through no fault of the receiving Party or that must be disclosed by law or by a regulator.

25. STATUS OF THIS MEMORANDUM

25.1 Except where expressly stated otherwise, this Memorandum constitutes a legally binding agreement between the Parties and remains binding until superseded by the definitive services agreement.

25.2 The Parties will negotiate a definitive services agreement in good faith. Until it is executed, the Parties will conduct themselves in accordance with this Memorandum.

26. GOVERNING LAW AND DISPUTES

26.1 This Memorandum is governed by the laws of the Federal Republic of Nigeria.

26.2 The Parties will attempt in good faith to resolve any dispute between the principals within 21 days. Failing that, the dispute is referred to mediation and, if still unresolved, to arbitration in Lagos under the Arbitration and Mediation Act 2023 before a single arbitrator.

27. GENERAL

27.1 Neither Party may assign this Memorandum without the other's written consent. Nothing here creates a partnership, a joint venture or an employment relationship between the Parties, save for the secondment arrangements at clause 7.4.

27.2 No variation is effective unless in writing and signed by both Parties. This Memorandum may be executed in counterparts, each of which is an original and which together constitute one instrument.

27.3 Notices under this Memorandum are given in writing to the address or email each Party notifies to the other, marked for the attention of the Group Chief Executive in the case of Medbury and the Founding Partner in the case of CFA. A notice sent by email is treated as received on the next business day.

27.4 This Memorandum, together with its Schedules, records the whole of what the Parties have agreed on its subject matter and replaces any earlier understanding between them, save that nothing here varies the memorandum relating to plastics and dermatology referred to at Schedule 1.

27.5 Where any provision is found to be unenforceable, it is severed and the remainder continues in force. A failure to enforce a provision is not a waiver of it.

27.6 A person who is not a Party has no right to enforce any provision of this Memorandum.

27.7 Neither Party is liable for a failure to perform caused by an event beyond its reasonable control, including an epidemic, civil disturbance, act of government or sustained failure of public infrastructure. The affected Party will notify the other promptly and both will work in good faith to resume. Where such an event continues for more than 90 days, either Party may terminate on 30 days' notice, and clause 22.7 applies to the handover.

EXECUTED by the Parties on the date first written above.

SIGNED for and on behalf of
MEDBURY HEALTHCARE GROUP

_____
Dr Itunu Akinware, Group Chief Executive

Date _____

SIGNED for and on behalf of
CONSULT FOR AFRICA

_____
Dr Adebowale Odulana, Founding Partner

Date _____

SCHEDULE 1

The five businesses

Business	**What it is**
Dentistry	General and preventive, restorative, cosmetic, orthodontic, implant and oral surgery
Hair restoration	Surgical and non-surgical hair restoration
Plastics and dermatology	Plastic surgery and dermatology, which has its own shareholders and its own memorandum
Weight and bariatric	Medical weight management and metabolic health
Medlyfe wellness and regenerative	Regenerative medicine, longevity programmes and infusion. Trading already

Plastics and dermatology has its own shareholders and its own memorandum. Nothing in this Memorandum varies that, and CFA's role there is the same operating role it has in the other four.

SCHEDULE 2

The CFA support functions

The first limb of what the monthly fee buys under clause 8.2. Each function is carried at CFA's premises and on CFA's payroll, and none of these posts sits on Medbury's payroll. The second limb, the direction of the Division toward the Board's goals, is not a schedule of tasks and is not listed here.

Function	What it covers
Finance	Management accounts, the revenue cycle and its controls, deferred revenue on treatment programmes sold before delivery, instalment and refund control, payables, payroll processing and the board pack
Marketing and sales	Strategy, campaigns, content, the enquiry funnel, conversion and the customer relationship management system
Human resources	Recruitment, contracts, onboarding, credentialing files, scope of practice, the rota model and performance management
Clinical governance and quality	The protocol set per modality, complications and escalation, consent and image consent, clinical audit, incidents and complaints
Technology	Administration and support of the Platform across the five businesses, and the reporting behind the board pack
Commercial and pricing	The rate card kept live against elasticity and mix, programme and bundle design, and the model underneath both
Procurement and supply	Specification, negotiation, second sourcing and the service level agreements behind them
Executive oversight	The time of a CFA partner on any matter reaching the Board

SCHEDULE 3

Setup deliverables

What CFA delivers across the Setup Period. The tranche measures that test them, and the amounts, are at clause 5.4 and are not repeated here.

Delivered across the Setup Period, once for the whole Division: the rate card and the model beneath it; the operating model across the five Businesses; the clinical protocol set and governance framework; the build and configuration of the Platform and the migration onto it; the standard operating procedures; the procurement framework and the signed partner agreements; the funnel and the front office; the governance rhythm and the board pack; and per Business the scope and menu, the staffing model, the equipment specification, the clinical brief for the space, the launch sequence and commissioning.

SCHEDULE 4

Performance measures for the management period

Measure	Target	How it is measured
Revenue	85 per cent of the Board-approved budget or better	Rolling two quarters
Profit	Within 3 points of the budgeted EBITDA margin	Rolling two quarters
Collections	No more than 5 per cent of billed revenue outstanding beyond 60 days	Quarterly
Utilisation	55 per cent of available clinical sessions	Quarterly, from the Platform
Cross-sell	15 per cent of patients treated by one business booked into a second within 180 days	Quarterly, from the record
Clinical governance	No unreported serious incident. Quarterly clinical audit completed. Complaints closed within 14 days	Quarterly
Patients	Satisfaction at 4.0 of 5 or better	Rolling quarter
Reporting	Board pack within 10 working days of month end	Monthly

Measured quarterly from the third full quarter of the Management Period. A breach is failure against the same measure in two consecutive quarters, and clause 22 then applies.

SCHEDULE 5

Who employs and pays which post

Post	Who employs and pays
The two chief operating officers	Medbury employs and pays. CFA recruits, and they are seconded to CFA and report to CFA for delivery
The CFA support functions at Schedule 2	CFA employs, pays and carries at its own premises. No post sits on Medbury's payroll
Unit leads, one per clinic or service line	Medbury employs and pays. CFA recruits and sets the standard they work to
Patient care coordinators	Medbury employs and pays. CFA writes the pathway, trains them and is measured on conversion
Clinicians, nurses, therapists, technicians and reception	Medbury employs and pays
Receivables, collections, cashiers, storekeepers and medical records	Medbury employs and pays. CFA writes the controls and audits against them

Where a post is not listed, clause 12.5 applies.